

Software Development and Support Agreement

****Contract Reference:**** CR-60K-ONE-TIME-001
****Effective Date:**** [DD/MM/YYYY]
****Execution Date:**** [DD/MM/YYYY]

This Software Development and Support Agreement ("Agreement") is entered into between:

- ****Client:**** [Client Legal Name], [Client Address]
- ****Service Provider:**** [Vendor Legal Name], [Vendor Address]

Collectively referred to as the "Parties".

1. Purpose

The Service Provider agrees to design, develop, deliver, and support a web-based software solution for the Client under a fixed one-time commercial amount of ****INR 60,000 (Rupees Sixty Thousand only)****, with ****one (1) year handling/support* from production go-live.**

2. Commercial Offer (Fixed Price)

- ****Total Contract Value:**** INR 60,000 (one-time, fixed)
- ****Model:**** Service-only (development + implementation + one-year handling/support)
- ****Included:**** Application development services, testing, deployment support, quarterly production release handling, basic operations assistance
- ****Not Included (Billed Separately if required):****
 - Cloud hosting/infrastructure charges
 - Domain, DNS, SSL certificates
 - Third-party paid APIs, payment gateway fees, SMS/email provider fees
 - Any external licenses/subscriptions

All amounts are exclusive of applicable taxes, unless otherwise stated in invoice.

3. Scope of Work

The Service Provider will deliver:

1. Functional implementation of agreed modules/features
2. Secure backend and API integration
3. Payment/order/cart workflow implementation and hardening
4. Test coverage for key flows and bug-fix support
5. Production deployment support on agreed timeline
6. One-year handling/support (as defined in Section 8)

4. Phase-wise Implementation and Cost Allocation

Phase	Description	Cost (INR)
Phase 1	Discovery, requirement finalization, planning, architecture baseline	10,000

Phase 2 Core implementation (frontend + backend + feature development) 22,000
Phase 3 Security, test hardening, bug fixes, technical documentation 12,000
Phase 4 Production readiness, deployment setup, handover 8,000
Phase 5 One-year handling/support reserve (quarterly release handling + minor fixes) 8,000
Total **60,000**

5. Delivery and Deployment Plan

The project follows a quarterly production deployment cadence:

- ****Quarter 1:**** Initial production launch
- ****Quarter 2:**** Planned production update/release
- ****Quarter 3:**** Planned production update/release
- ****Quarter 4:**** Planned production update/release and annual closure review

Deployment windows will be mutually scheduled with at least 5 business days prior notice.

6. Payment Terms

Suggested payment schedule:

- ****40% (INR 24,000):**** On contract sign-off and project kickoff
- ****30% (INR 18,000):**** On completion of core implementation milestone
- ****20% (INR 12,000):**** At initial production go-live
- ****10% (INR 6,000):**** At completion of handover and support transition checklist

Invoice payment due within ****7 calendar days**** of invoice date.

7. Acceptance Criteria

A phase is considered accepted when:

1. Agreed deliverables are demonstrated
2. Critical/blocker defects are resolved
3. Client approval is shared in writing (email/official chat/written sign-off)

If no written rejection is provided within 5 business days of delivery demo, the milestone shall be deemed accepted.

8. One-Year Handling/Support Terms

Support duration: ****12 months from initial production go-live date****.

8.1 Included Support

- Minor bug fixes and stability improvements
- Production issue triage and guidance
- Quarterly release handling support
- Configuration-level support for existing modules

8.2 Response Targets (Business Hours)

- ****Critical (prod down/security incident):**** Initial response within 4 hours
- ****High (major feature impacted):**** Initial response within 1 business day
- ****Medium/Low:**** Initial response within 2 business days

8.3 Excluded from Included Support

- New major feature development beyond agreed scope
- Full redesign/re-architecture requests
- Third-party outages or vendor-side disruptions
- New compliance/legal implementations not in original scope

Excluded work can be handled via separate change request/commercial quote.

9. Change Request (CR) Policy

Any requirement that exceeds the documented scope will be treated as a Change Request and may impact:

- Cost
- Delivery schedule
- Resource allocation

CR must be approved in writing by both Parties before implementation.

10. Security and Compliance

Service Provider will follow secure coding and operational best practices, including:

- Parameterized query patterns (SQL injection prevention)
- Input validation and error sanitization
- Idempotent handling for critical mutation APIs (where implemented)
- Transaction and locking strategy for consistency-sensitive flows

Client remains responsible for compliance obligations specific to their industry unless expressly contracted.

11. Warranty and Liability

- Service Provider warrants work quality for agreed scope during support period.
- Service Provider liability is limited to the total fees paid under this Agreement.
- Neither Party is liable for indirect/consequential losses, including loss of profit/data, except where prohibited by law.

12. Intellectual Property

Upon full payment of agreed fees, deliverables created specifically for Client under this Agreement are assigned to Client, excluding:

- Service Provider pre-existing IP, libraries, templates, and tools

- Third-party components under their respective licenses

13. Termination

Either Party may terminate this Agreement with written notice if the other Party materially breaches obligations and fails to cure within 15 calendar days from notice.

On termination, payment is due for completed and accepted work up to termination date.

14. Governing Law and Jurisdiction

This Agreement shall be governed by the laws of India.

Any dispute shall be subject to the exclusive jurisdiction of courts at **[City, State]**.

15. Signatures

****For Client****

Name: _____

Title: _____

Signature: _____

Date: _____

****For Service Provider****

Name: _____

Title: _____

Signature: _____

Date: _____